

Attorney Analysis

This report is based on civil trial court records from the selected state and does not include any federal litigation.

Attorney: Bryan J Freedman (SBN: #151990)

I. Summary of Key Cases

Analysis of Bryan J Freedman's litigation approach through 5 representative cases:

A. Case Study 1: [Herrick Productions, LLC v. Mattel, Inc. \(Los Angeles County Superior Court\) \(Case No. 19SMCV01209\)](#)

Case Information

- Filed: July 3, 2019
- Plaintiff(s): Herrick Productions, LLC
- Defendant(s): Mattel, Inc.
- Attorney(s) for Plaintiff: Bryan J Freedman and team at Freedman + Taitelman, LLP
- Judge: Hon. Harry Jay Ford III
- Matter Type: Contractual Fraud; Commercial Practice Area

Factual Background

- Plaintiff alleges breach of implied contract, breach of confidence, fraud, and trade secret misappropriation against Mattel.

Legal Claims

- Breach of Implied Contract
- Breach of Confidence
- Fraud
- Trade Secret Misappropriation

B. Case Study 2: [Marchel Gabrielle Auguste v. Thomas Wesley Pentz \(Los Angeles County Superior Court\) \(Case No. 21STCV23647\)](#)

Case Information

- Filed: June 25, 2021
- Plaintiff: Marchel Gabrielle Auguste (aka Shelly Auguste)
- Defendant: Thomas Wesley Pentz (aka Diplo)
- Attorney(s) for Defendant: Bryan J Freedman and team at Freedman + Taitelman, LLP
- Judge: Hon. Timothy P. Dillon
- Matter Type: Intentional Torts; Civil Rights/Discrimination

Factual Background

- Plaintiff alleges claims including sexual battery, gender violence, civil rights violations, intentional torts such as battery, assault, defamation, and emotional distress.

Legal Claims

- Sexual Battery
- Gender Violence
- Violation of Ralph Civil Rights Act
- Violation of Tom Bane Civil Rights Act
- Intentional Intrusion into Private Affairs
- Battery, Assault, Defamation
- Intentional Infliction of Emotional Distress
- Fraud

C. Case Study 3: [Liberty Media Group LLC et al v. Cinecause LLC et al \(Los Angeles County Superior Court\) \(Case No. BC606196\)](#)

Case Information

- Filed: January 5, 2016
- Plaintiffs: Liberty Media Group LLC, Community Redevelopment Association LLC, General Barricade LLC
- Defendants: Multiple including Cinecause LLC, Gilead Sciences Inc, Goldenvoice LLC
- Attorney(s) for Plaintiffs: Bryan J Freedman and team at Freedman + Taitelman, LLP
- Judge: Hon. Michael P. Linfield
- Matter Type: Breach of Contract; Commercial Practice Area

Factual Background

- Complex multi-party commercial litigation involving contract disputes, nuisance claims, and related issues.

Legal Claims

- Breach of Contract
- Nuisance and related claims

D. Case Study 4: [Thomas Wesley Pentz v. Marchel Gabrielle Auguste \(Los Angeles County Superior Court\) \(Case No. 21STCV16321\)](#)

Case Information

- Filed: April 30, 2021
- Plaintiff: Thomas Wesley Pentz (aka Diplo)
- Defendant: Marchel Gabrielle Auguste (aka Shelly Auguste)
- Attorney(s) for Plaintiff: Bryan J Freedman and team at Freedman + Taitelman, LLP
- Judge: Hon. Serena R. Murillo
- Matter Type: Personal Injury; Torts

Factual Background

- Plaintiff alleges personal injury claims including stalking, trespass, distribution of private materials (revenge pornography).

Legal Claims

- Stalking
- Trespass
- Distribution of Private Materials (Revenge Pornography)

Case Information

- Filed: November 30, 2015
- Plaintiff: Beth Einhorn
- Defendant: Michael Carbonaro
- Attorney(s) for Defendant: Bryan J Freedman and team at Freedman + Taitelman, LLP
- Judge: Hon. Gerald S. Rosenberg
- Matter Type: Breach of Contract; Commercial Practice Area

Factual Background

- Plaintiff alleges breach of contract related claims against defendant Michael Carbonaro.

Legal Claims

- Breach of Contract

II. Practice Area Insights

- **Diverse Commercial Litigation Focus:** Freedman primarily engages in high-stakes commercial disputes involving breach of contract, trade secret misappropriation, and related fraud claims, as evidenced in Herrick Productions and Liberty Media Group cases.
- **Complex Civil Rights and Tort Defense:** Representation in high-profile tort and civil rights cases involving intentional torts such as sexual battery, stalking, and defamation, particularly representing defendants in sensitive, high-profile matters (e.g., Thomas Wesley Pentz cases).
- **Client Profile:** Predominantly represents corporate clients and high-net-worth individuals in defense roles, as well as plaintiffs in commercial litigation.
- **Specialization in Entertainment and Media Sector:** Cases involving entertainment industry figures and companies (e.g., Mattel, Liberty Media Group, Thomas Wesley Pentz aka Diplo, Michael Carbonaro) indicate a strategic focus on intellectual property, contractual, and personal injury disputes within the entertainment sector.
- **Broad Range of Legal Claims:** Handles a spectrum from commercial contract and fraud claims to personal injury, civil rights violations, and tort claims, demonstrating versatility and strategic adaptability.

III. Discovery Approach

- **Persistent and Aggressive Discovery Enforcement:** In Herrick Productions v. Mattel, Freedman’s team actively pursued discovery through multiple motions to compel, including special interrogatories and document production, reflecting a tactical emphasis on thorough fact development and leveraging discovery to pressure opposing parties. (See [Herrick Productions v. Mattel](#))
- **Strategic Use of Protective Orders and Confidentiality Agreements:** The frequent filing and negotiation of protective orders in the Herrick case indicate a calculated approach to safeguard sensitive information while maintaining aggressive discovery demands. (See [Herrick Productions v. Mattel](#))
- **Coordinated Discovery Management in Complex Litigation:** The extensive docket activity involving discovery conferences, motions to compel, and meet-and-confer statements in large commercial and tort cases suggests Freedman’s proficiency in managing voluminous and contentious discovery, ensuring compliance while defending against overbroad or irrelevant requests. (See [Liberty Media Group v. Cinecause](#); [Auguste v. Pentz](#))
- **Proactive IME and Expert Discovery Tactics:** In the tort cases involving Thomas Wesley Pentz, Freedman’s firm aggressively pursued independent medical examinations and expert witness exclusions via motions in limine, demonstrating tactical control over expert discovery and trial preparation. (See [Auguste v. Pentz](#); [Pentz v. Auguste](#))
- **Effective Use of Ex Parte Applications to Expedite Discovery Disputes:** The frequent use of ex parte applications to advance or specially set motions to compel reflects a tactical urgency to resolve discovery disputes swiftly and maintain litigation momentum. (See [Auguste v. Pentz](#))
- **Defensive Discovery Posture in Tort Cases:** Motions in limine to exclude undisclosed expert testimony and evidence indicate a defensive posture to limit plaintiff’s evidentiary scope, protecting client interests from surprise disclosures. (See [Auguste v. Pentz](#))
- **Sophisticated Handling of Multi-Party Discovery:** In multi-defendant commercial litigation such as Liberty Media Group, Freedman’s approach involves coordinated motions to compel and protective orders that manage discovery across numerous parties, reflecting expertise in complex litigation logistics. (See [Liberty Media Group v. Cinecause](#))

IV. Motion Practice

- **Frequent and Strategic Use of Motions to Compel:** Freedman’s docket shows repeated motions to compel discovery responses, indicating a proactive stance to enforce compliance and maintain pressure on opposing parties. This is evident in Herrick Productions and the tort cases. (See [Herrick Productions v. Mattel](#); [Auguste v. Pentz](#))
- **Robust Opposition to Undesired Discovery and Evidentiary Motions:** In commercial cases, Freedman’s practice includes vigorous opposition to motions to compel and motions in limine, employing detailed evidentiary objections and declarations to support client positions. (See [Liberty Media Group v. Cinecause](#))
- **Extensive Motion in Limine Usage to Shape Trial Evidence:** In tort cases, Freedman employs multiple motions in limine to exclude expert testimony, evidence of financial condition, and undisclosed claims, evidencing a strategic effort to narrow issues and limit plaintiff’s trial presentation. (See [Auguste v. Pentz](#))
- **Motion for Summary Judgment and Adjudication in Commercial Litigation:** The Liberty Media Group case shows Freedman engaging in dispositive motion practice to seek summary judgment or adjudication, reflecting a willingness to resolve or narrow claims pre-trial. (See [Liberty Media Group v. Cinecause](#))
- **Use of Ex Parte Applications to Expedite Litigation Timeline:** Frequent ex parte applications to advance hearing dates or motions illustrate Freedman’s tactical use of court procedures to accelerate case progress or respond to emergent issues. (See [Herrick Productions v. Mattel](#); [Auguste v. Pentz](#))
- **Selective Use of Motions to Continue or Reset Trial Dates:** Freedman’s filings include motions and stipulations to continue trial and related deadlines, suggesting a pragmatic approach to managing litigation pacing and readiness. (See [Auguste v. Pentz](#))
- **Aggressive Defense via Motions to Exclude Evidence:** The frequent motions in limine to exclude evidence related to damages, expert testimony, and financial information indicate a sophisticated strategy to minimize exposure and control trial narrative. (See [Beth Einhorn v. Michael Carbonaro](#))
- **Coordinated Team Approach in Complex Litigation:** The consistent involvement of multiple attorneys from Freedman’s firm in motion practice and discovery reflects a coordinated, resource-intensive litigation strategy.

V. Stipulations

- **Frequent Stipulations to Manage Case Progression and Discovery:** In Herrick Productions and other cases, Freedman’s team regularly enters into stipulations to continue trial dates, extend discovery deadlines, and agree on protective orders, demonstrating a collaborative yet strategic approach to case management.
- **Use of Joint Stipulations to Resolve Discovery Disputes:** Stipulations regarding evidence withholding and privilege claims indicate a preference for negotiated resolutions to discovery conflicts where possible, balancing cooperation with advocacy.
- **Strategic Continuances to Optimize Litigation Timing:** Stipulations to continue trial and related deadlines suggest a tactical use of procedural agreements to ensure adequate preparation and leverage timing advantages.

VI. Challenging or Disqualifying Judicial Officers

- No specific information indicates that Freedman engaged in challenges or disqualification of judges in the provided cases.

VII. Case Outcomes

- **Mixed Outcomes in High-Stakes Commercial Litigation:** In Herrick Productions v. Mattel, the case proceeded through extensive discovery and motion practice with a jury trial scheduled and multiple continuances, ultimately resulting in judgment for the defendant, indicating a challenging litigation environment despite aggressive plaintiff advocacy.
- **Effective Defense in Tort and Civil Rights Litigation:** In the Pentz v. Auguste and Auguste v. Pentz cases, Freedman’s defense tactics, including motions to exclude evidence and compel IMEs, suggest an effective strategy to limit plaintiff claims and manage trial risks.
- **Settlement and Dismissal Patterns in Complex Cases:** Liberty Media Group litigation shows a history of motions to compel and discovery disputes that likely contributed to negotiated settlements or dismissals, reflecting the firm’s ability to drive resolution in complex multi-party cases.
- **Prolonged Litigation and Trial Delays:** Multiple continuances and rescheduling of trials and hearings across cases indicate a deliberate pacing strategy, balancing aggressive advocacy with practical case management.

VIII. Case Duration

- **Average Case Duration:** The cases span from roughly 2 to 8 years, with commercial cases like Liberty Media Group extending over multiple years due to complexity, and tort cases showing multi-year active litigation phases.
- **Individual Case Durations:**
 - Herrick Productions v. Mattel: Filed July 2019, trial activities continuing into 2024 (~5+ years)
 - Marchel Gabrielle Auguste v. Thomas Wesley Pentz: Filed June 2021, ongoing through 2024 (~3+ years)

- **Liberty Media Group v. Cinecause:** Filed January 2016, active through at least 2017 (~2+ years)
 - **Thomas Wesley Pentz v. Marchel Gabrielle Auguste:** Filed April 2021, ongoing through 2024 (~3+ years)
 - **Beth Einhorn v. Michael Carbonaro:** Filed November 2015, trial activity through 2019 (~4+ years)
- **Deliberate Case Management:** The extended durations reflect Freedman's tactical use of continuances, discovery disputes, and motion practice to manage case progression and client interests effectively.

IX. Attorney's Patterns & Key Takeaways for Opposing Counsel

- **Assertive Discovery Enforcement Coupled with Protective Measures:** Freedman employs a dual strategy of aggressively pursuing discovery through motions to compel while simultaneously negotiating protective orders to shield sensitive information. Opposing counsel should prepare for rigorous discovery battles and be ready to engage in detailed meet-and-confer efforts and potential protective order negotiations.
 - *Key Takeaway(s):* Anticipate extensive discovery disputes requiring meticulous documentation and readiness for motion practice; early engagement in protective order discussions can mitigate conflicts.
- **Sophisticated Motion Practice to Shape Litigation Trajectory:** The attorney utilizes a broad spectrum of motions—including motions in limine, summary judgment, and motions to exclude expert testimony—to strategically narrow issues and limit adversary evidence, demonstrating a preference for controlling trial scope preemptively.
 - *Key Takeaway(s):* Opposing counsel should thoroughly vet evidentiary and expert disclosures early, prepare for pretrial challenges, and develop robust responses to limit the effectiveness of such motions.
- **Strategic Case Pacing via Continuances and Stipulations:** Freedman's practice includes frequent use of continuances and stipulations to extend discovery and trial deadlines, reflecting a calculated approach to manage litigation tempo and resource allocation.
 - *Key Takeaway(s):* Counsel should monitor scheduling requests critically, balancing client needs with the risk of protracted litigation; proactive case management motions may be necessary to avoid undue delays.
- **Expert Discovery Control in High-Stakes Litigation:** In tort and civil rights cases, Freedman aggressively moves to exclude undisclosed experts and limit testimony, signaling a strategy to undermine opponent's expert evidence and preserve trial advantage.
 - *Key Takeaway(s):* Opposing counsel must ensure strict compliance with expert disclosure rules and prepare to defend expert designations vigorously to withstand exclusion motions.
- **Experience in Complex Multi-Party Commercial Litigation:** Freedman's involvement in multi-defendant, multi-claim commercial cases demonstrates capability in managing complex procedural and discovery challenges, including coordinating among numerous parties and counsel.
 - *Key Takeaway(s):* Opposing counsel should expect coordinated opposition and robust defense strategies; early and organized discovery planning is critical to maintain leverage.
- **High-Profile Client Representation in Entertainment Sector:** Representation of entertainment figures and companies indicates Freedman's familiarity with industry-specific legal issues, allowing tailored tactical approaches in intellectual property, contractual, and personal injury disputes.
 - *Key Takeaway(s):* Opposing counsel should prepare for industry-specific defenses and evidentiary challenges, potentially requiring expert consultants with entertainment industry knowledge.